

24TRCV00717 24TRCV00717

County: los-angeles

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Case Number: 24TRCV00717 Hearing Date: August 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LAURA MAYELA MORENO

, et al.;

Plaintiffs,

vs.

SUBARU OF AMERICA, INC.

;

Defendant.

Case

No.:

24TRCV00717

Hearing

Date:

August
7, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

SUBARU OF AMERICA, INC.'S MOTION TO STRIKE OR TAX PLAINTIFFS Laura Mayela
Moreno and Michael Moreno'S MEMORANDUM OF COSTS

MOVING PARTY: Defendant, Subaru of America,
Inc.

RESPONDING PARTY: Plaintiffs, Laura Mayela Moreno and
Michael Moreno

(1) Defendant Subaru of America, Inc.'s Motion
to Strike or Tax Plaintiffs Laura Mayela Moreno and Michael Moreno's Memorandum
of Costs is GRANTED IN PART pursuant to California Rules of Court, rule
3.1700(b).

The Court considers the moving
papers filed on April 2, 2026, the opposition brief filed on June 11, 2026, the
reply brief filed on June 25, 2026, the declaration filed on July 2, 2026, and
the opposition brief to the declaration filed on July 16, 2026. To
date, no reply brief to the declaration has been filed.

BACKGROUND

Factual Background

On February 29,
2024, plaintiffs Laura Mayela Moreno and Michael Moreno
(collectively, "Plaintiffs") filed their Complaint against defendants Subaru of America, Inc. ("Defendant")

and DOES 1 through 50. The Complaint includes the following causes of action: (1) Violation of Subdivision (d) of Civil Code section 1793.2; (2) Violation of Subdivision (b) of Civil Code section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2; (4) Breach of Express Written Warranty – Civil Code Sections 1791.2, subdivision (a), and 1794; and (5) Breach of the Implied Warranty of Merchantability – Civil Code sections 1791.1 and 1794.

On January 12, 2026,
Plaintiffs filed a Notice of Settlement of Entire Case.

On February 26,
2026, the parties executed the Settlement Agreement and Release. As part of this agreement, Plaintiffs received a sum of \$9,500.00 and were designated as the “prevailing parties” for the purposes of any motion for attorneys’ fees and costs.

On March 16, 2026,
Plaintiffs filed their Memorandum of Costs for \$1,764.15. (Declaration of Susan Suzy Haroutunian (“Haroutunian Decl.”), ¶ 4, Exh. A.)

Procedural Background

On April 2, 2026, Defendant filed the motion. On June 11, 2026, Plaintiffs filed an opposition brief. On June 25, 2026, Defendant filed a reply brief.

On July 2, 2026,
the Court called the motion to be heard; however, the hearing was continued at the oral request of Plaintiff’s counsel.

(July 2, 2026 Minute Order, p. 5.)

The Court “set[] a briefing schedule as follows: declaration (including invoices) to be filed and served by 7/9/26, opposition (no more than 5 pages in length) to be filed and served by 7/16/26, and reply (no more than 5 pages in length) to be filed and served by 7/22/26.”

(July 2, 2026 Minute Order, p. 5.)

On July 2, 2026, Plaintiff
filed a declaration and attached invoices.

On July 16, 2026, Defendant filed an opposition brief designated as an "objection to the declaration." To date, no reply brief to the declaration has been filed.

LEGAL STANDARDS

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the costs memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013." (Cal. Rules of Court, rule 3.1700(b)(1).) The failure to timely file a motion to tax or strike costs constitutes a waiver of the right to object to costs. (Douglas v. Willis (1994) 27 Cal.App.4th 287, 289; see Cal. Rules of Court, rule 3.1700(b)(3) ["The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days."].)

A prevailing party claiming costs must file and serve a memorandum of costs either (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5, (2) 15 days after the service of written notice of entry of judgment or dismissal, or (3) within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700(a).) Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700(b)(1).) "Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700(b)(2).)

Code of Civil Procedure section 1033.5, subdivision

(a), sets forth items allowable as costs.

Subdivision (b) lists the items that are not allowable as costs. Generally, the court has discretion to allow costs that are not barred by subdivision (b) but are not listed under

subdivision (a). (Science

Applications Internat. Corp. v. Superior Court (1995) 39 Cal.App.4th 1095,

1103.) However, under the Song-Beverly

Consumer Warranty Act, if a buyer-plaintiff prevails in their action, “the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ.

Code, § 1794, subd. (d), emphasis added.)

“[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase costs and expenses to cover items not included in the detailed statutory definition of costs set forth in Code of Civil Procedure section 1033.5.” (Warren v. Kia

Motors America, Inc. (2018) 30 Cal.App.5th 24, 42.) Therefore, a buyer-plaintiff in a Song-Beverly action may recover typically “barred”

costs and expenses, provided they were reasonably incurred in connection with commencing and prosecuting the action.

If an item of costs is expressly allowed by statute

and if items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the objecting party to show that the items are not “reasonably necessary to the conduct of the litigation” or “reasonable in amount.” (Benach v. County of Los Angeles

(2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72

Cal.App.4th 111, 131-132 [“trial court erred in requiring additional proof

from” the party claiming costs, where the party attacking costs had the

burden]; Santantonio v. Westinghouse Broadcasting Co. (1994) 25

Cal.App.4th 102, 116, 121 [after a prima facie showing based on verified cost memorandum, objecting party has the burden to prove costs should be

disallowed]; Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 773.)

But if an item of cost does not appear proper on its

face, the burden of showing that it is reasonable and necessary shifts to the

party claiming the cost. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 (Nelson); Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267; see Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 ["Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred."].)

DISCUSSION

Defendant now contends that the Court should either strike the entire memorandum of costs or, in the alternative, tax the total costs by \$392.59; this amount includes: (1) 150.00 in jury fees; (2) \$111.97 in filing and motion fees; and (3) \$116.39 in service of process fees. (Obj., pp. 1:23-3:18.) The Court notes that Defendant fails to provide a rationale for striking the entire memorandum of costs, particularly since Plaintiffs have now submitted relevant invoices and receipts. (Motion, pp. 1:24-2:17.) Consequently, the Court will concentrate its analysis on whether any of the requested costs should be taxed. The Court finds that it is appropriate to tax \$116.39 in costs.

Plaintiffs, who are the prevailing parties in this Song-Beverly case, are requesting reimbursement for the following costs: (1) \$587.96 in filing and motion fees; (2) \$150.00 in jury fees; (3) \$147.29 in service of process fees; and (4) \$879.00 for a deposition transcript. (Haroutunian Decl., Exh. A.)

Filing fees, jury fees, and service of process fees are expressly authorized under Code of Civil Procedure section 1033.5, subdivisions (a)(1) and (a)(4). Given that these expenses are explicitly permitted and appear proper, the verified memorandum of costs is prima facie evidence of their propriety. This places the burden of proof on Defendant, who must demonstrate that the costs were not "reasonably necessary to the conduct of the litigation" or "reasonable in amount." (Benach, supra, 149 Cal.App.4th at p. 855.)

Jury Fees

Defendant argues that Plaintiff should not be permitted to recover jury fees because these fees were not used for their "intended purpose," specifically, juror food or lodging. (Obj., pp. 1:24-2:1.)

Code of Civil Procedure

section 1033.5 does not require jury fees to be utilized for juror food or lodging. In fact, the statute makes a clear distinction between jury fees and the costs associated with “[j]uror food and lodging while they are kept together during trial and after the jury retires for deliberation.” (Code Civ. Proc., § 1033.5, subd. (a)(1)-(2).) It is unclear why Defendant believes jury fees must be used for these purposes, as it does not provide any statutes or case law to support this claim.

Therefore, Defendant fails to demonstrate that the costs in question were not reasonably incurred in connection with commencing and prosecuting the action. Consequently, the request to tax these costs is DENIED.

Filing and Motion Fees

Defendant contends that the Court should reduce the claimed costs by taxing \$111.97 in filing and motion fees. (Obj., p. 2:2-17.) Defendant contends, “The Superior Court of California has a Statewide Civil Fee Schedule which indicates the cost of filing the Complaint is \$435.00, the cost for civil case management statements is \$0.00, notice of continuance of hearing of case management conference is \$20.00, and the cost of filing notice of settlement is \$0.00.” (Obj., p. 2:3-7.) Consequently, Defendant maintains that Plaintiffs should only be entitled to recover “\$435.00 for filing the Summons and Complaint, \$14.16 for the Notice of Continuance of the Final Status Conference, \$14.16 for the Notice of Post Mediation Status Conference Hearing, and \$12.57 for the Notice of Case Management Conference.” (Obj., p. 2:14-17.)

While Defendant accurately references the amounts stipulated in the Superior Court of California Statewide Civil Fee Schedule for initial filing fees in civil cases, the Court notes the existence of additional electronic filing fees that are not accounted for in this schedule. These electronic filing fees address the discrepancies raised by the Defendant in their opposition to the declaration.

Defendant also asserts that the Court should tax the \$14.23 charge for filing a notice of settlement, arguing that “[t]he filing of a Notice of Settlement occurs after resolution of the action and is not incurred in its commencement or prosecution, but rather relates to

post-settlement matters including recovery of Plaintiffs' attorneys' fees and costs." (Obj., p. 2:25-28.) The Court disagrees. A notice of settlement is integral to the prosecution of the action, as it serves to inform the Court of the resolution of the case and effectively concludes the prosecution of Plaintiffs' claims.

Therefore, Defendant fails to demonstrate that the costs in question were not reasonably incurred in connection with commencing and prosecuting the action. Consequently, the request to tax these costs is DENIED.

Service Fees

Defendant contends that the Court should tax \$116.39 for the service of a subpoena on a non-party dealership, citing two primary arguments: (1) the individual who was subpoenaed was never deposed, and (2) costs associated exclusively with investigatory purposes or convenience are not recoverable under section 1033.5, subdivision (c)(2), as the "testimony is of extremely limited probative value." (Obj., p. 3:8, 12-15.)

The second argument is without merit. The Court underscores that the pertinent issue is not Defendant's assessment of the testimony's value. Rather, the focal point is whether the costs were reasonably incurred in the context of commencing and prosecuting the action. Defendant's perspective regarding the value of the testimony does not substantiate claims of the costs being unreasonable.

However, the Court concurs with the first argument. Plaintiffs did not depose the non-party dealership. Although Plaintiffs argue that "[s]ervice of subpoenas is a necessary component of litigation preparation, especially in Song-Beverly cases where dealership personnel often possess critical information regarding the plaintiffs' repair presentations, warranty repairs, diagnostic findings, communications with the manufacturer, and service history[.]" their own conduct suggests otherwise. (Opp., p. 7:3-6.) Plaintiffs' invoice indicates that the non-party deponent was served on September 23, 2025. (Declaration of Joshua D. Fennell, ¶ 9, Exh. 3.) The case did not reach a settlement until approximately January 12, 2026, when Plaintiffs filed the notice of settlement. Consequently, Plaintiffs had

several months to conduct the deposition but opted not to do so. They cannot reasonably assert that the deposition and service of the subpoena were reasonably incurred in conjunction with the commencement and prosecution of the action when they chose not to follow through on the subpoena.

Consequently, the request to tax \$116.39 from the service fees is GRANTED.

Accordingly, the Court GRANTS IN PART Defendant's motion to strike or tax costs, taxing \$116.39 from the service fees.

ORDERS

1) Defendant

Subaru of America, Inc.'s Motion to Strike or Tax Plaintiffs Laura Mayela

Moreno and Michael Moreno's Memorandum of Costs is GRANTED IN PART. The Court taxes \$116.39 from the service fees.

2) Defendant

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Tamara

Hall

Judge

of the Superior Court